

24NWCV01843 24NWCV01843

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C09%2F04%2F2026

Source SHA-256: ecc8e3b7bb00e68b29bd85ec760edcfbc73e411adf77945f9981622285daf42a

Case Number: 24NWCV01843 Hearing Date: September 4, 2026 Dept: C

EDGAR I. REYNAGA, et

al. vs 1800 DOROTHEA LANE, LLC, et al., Case No. 24NWCV01843

This is a construction defect

case arising from the sale of a new residence located at 1800 Dorothea Road, La Habra Heights, California, to the Plaintiff-Buyers EDGAR REYNAGA and JENNIFER LEDESMA. Plaintiffs' Motion for Leave to File a Second Amended Complaint is set for hearing on September 4, 2026. Here, Defendants 1800 DOROTHEA LANE, LLC, UZI LEVY and MARAT DREICER apply ex parte for an order continuing the hearing on Plaintiffs' motion on the grounds that counsel for Defendants never received a copy of the motion. (Henricks Decl., ¶15.) Counsel for Defendants, who recently substituted in, were not counsel of record when Plaintiffs filed the motion on August 3, 2026. Plaintiffs assert that the effect of the amendment is to add specific fraud allegations related to the concealment of known defects in the construction of the grading and retaining walls in the sale transaction, to add the remedy of rescission and to plead various indemnity and declaratory relief claims based on the claims raised by the neighbor, Cima Johnson, and to include those claims in this lawsuit. The ex parte application is GRANTED. Plaintiff's motion for leave to file a second amended complaint is CONTINUED to October 16, 2026 at 9:30 a.m. in Dept. SE-C. Plaintiff is ORDERED to serve a copy of the motion upon counsel for Defendants by the close of business on September 4, 2026. Opposition and Reply briefs shall be filed and served in compliance with CCP § 1005. Defendants to give notice.